

SAR, ER or FOI

TYPE OF REQUEST	DATA SUBJECT ACCESS	EDUCATION RECORD	FREEDOM OF INFORMATION
WHICH LAW?	Data Protection Act 2018	The Education (Pupil Information) Regulations 2005	Freedom of Information Act 2000
DO YOU HAVE TO RESPOND?	✓	Only maintained and special schools have to respond	✓
WHAT IS THE REQUEST FOR?	Personal data	Pupil record	Any recorded information held by public authorities
WHO CAN MAKE A REQUEST?	Anyone, examples include a pupil, parent or guardian, employee, a solicitor acting on behalf of someone	A parent	Any individual or organisation
WHO CAN IT BE MADE TO?	Any employee of any organisation	Any employee of a maintained school	Any employee of a public authority
HOW LONG DO YOU HAVE TO RESPOND?	A month	15 school days	20 school days
DOES IT HAVE TO BE IN WRITING?	✗	✓	✓
CAN YOU CHARGE?	Usually not, but there are some limited cases	✗	You can charge for certain communication costs (photocopying, posting and printing)